BestRun EV

Apex Series Pre-Order Terms & Conditions

Valid for Pre-Orders Placed Before Official Launch Date - Authorized Dealers Only

1. Scope and Applicability

These Terms & Conditions (T&C) govern all pre-orders for BestRun EV Apex Series products placed by authorized dealers via the BestRun EV pre-order portal prior to the official Apex Series launch date. By submitting a pre-order, the dealer agrees to these terms in full. These T&C supplement and do not replace the Dealer Framework Agreement.

Capitalized terms not defined here have the meaning given in the Dealer Framework Agreement or the Apex Pre-Order Discount Policy.

2. Eligibility

Pre-orders may only be placed by dealers who meet all of the following conditions:

- Hold a current, valid BestRun EV Authorized Dealer Agreement.
- Are in good standing - no outstanding invoices overdue by more than 30 days.
- Have completed the Apex Series product training module (available on the dealer portal).
- Are placing the pre-order for their own authorized sales territory.

Note: Pre-orders placed by dealers whose agreement is suspended or under review will be held pending resolution. BestRun EV will notify the dealer within 2 business days.

3. Pre-Order Process & Confirmation

3.1 Placing a Pre-Order

Pre-orders are placed via the BestRun EV dealer portal (bestrun-ev.com/dealer > Pre-Order > Apex Series). The dealer selects model, variant, color, quantity, and payment terms. The portal displays real-time allocation availability per model and color.

Note: Allocation is reserved on a first-come, first-served basis at the time of submission. Adding items to the pre-order cart does not reserve allocation - only a confirmed pre-order (see 3.2) constitutes a reservation.

3.2 Order Confirmation

A pre-order is binding once the dealer receives an automated email confirmation containing a unique Pre-Order Reference Number (PORN). This confirmation is sent within 15 minutes of submission. The confirmed pre-order locks:

- Model, variant, color, and quantity.
- Dealer net price at the time of submission (inclusive of all applicable pre-order discounts).
- Payment terms selected at checkout.
- Estimated delivery window (subject to Section 6).

If no confirmation email is received within 30 minutes, the dealer should contact dealer-support@bestrun-ev.com with their portal session reference before resubmitting.

4. Pricing & Payment

4.1 Price Lock

The dealer net price (including pre-order discount) is locked at the time of pre-order confirmation and will not change regardless of subsequent price adjustments to the Apex Series. Price lock applies per unit in the confirmed pre-order.

4.2 Payment Schedule

Payment Terms	Deposit Required	Balance Due	Discount

Upfront	100% at checkout	N/A	3% off dealer net
Net 30	None	30 days from invoice date	None
Net 60 (Gold/Platinum only)	None	60 days from invoice date	None

Invoices are issued at the time of dispatch. For upfront payment, the invoice is issued at the time of pre-order confirmation and must be settled within 5 business days to maintain the allocation.

4.3 Currency & VAT

All prices are quoted in EUR ex-VAT unless otherwise stated. VAT is charged at the rate applicable in the dealer's country of registration at the time of invoice. For UK dealers, GBP pricing applies; for APAC dealers, SGD pricing applies as per the Dealer Commercial Handbook. Exchange rates for non-EUR markets are fixed quarterly.

5. Allocation & Priority

Production allocation for the Apex Series is limited, particularly for the Apex Pro. BestRun EV manages allocation as follows:

Priority	Condition	Allocation Guarantee
1 - Platinum	Platinum tier, pre-order > 60 days before launch	Full order guaranteed
2 - Gold	Gold tier, pre-order > 60 days before launch	Full order guaranteed
3 - Silver	Any tier, pre-order > 30 days before launch	Up to 5 units Apex Pro guaranteed
4 - Late	Pre-order < 30 days before launch	Subject to remaining allocation

Note: If BestRun EV cannot fulfil the full pre-ordered quantity due to production constraints, the dealer will be notified at least 30 days before the expected delivery date and offered a partial delivery or a revised delivery window. The dealer may cancel unfulfillable units without penalty.

6. Delivery

6.1 Estimated Delivery Window

Estimated delivery windows are communicated at pre-order confirmation and are subject to production and logistics schedules. BestRun EV will provide a firm delivery date at least 14 days before dispatch.

Region	Estimated Window from Launch Date	Express Option
EU	5-10 business days	EUR 45/unit additional
UK	7-14 business days	Not available
APAC	10-21 business days	Not available

6.2 Delivery Delays

If BestRun EV anticipates a delay of more than 10 business days beyond the confirmed delivery window, it will notify the dealer in writing. The dealer may:

- Accept the revised delivery date with no change to pricing or terms.
- Cancel the affected units without penalty and receive a full refund of any deposit paid.

Delays caused by force majeure events (natural disasters, regulatory actions, supply chain disruptions beyond BestRun EV's reasonable control) are excluded from the above obligations, but BestRun EV will provide updates at least every 14 days.

6.3 Risk & Title

Risk of loss passes to the dealer upon delivery to the dealer's registered address. Title (ownership) passes upon receipt of full payment. Units delivered under Net 30 or Net 60 terms remain the property of BestRun EV until the invoice is paid in full.

7. Cancellation

7.1 Dealer Cancellation Rights

Timing	Apex City / Trail	Apex Pro
Before confirmation email	No charge; order not binding	No charge; order not binding
0-7 days after confirmation	Full refund of any deposit	Full refund of any deposit
> 7 days after confirmation	Full refund of deposit less 5% fee	No cancellation - production slot confirmed
After dispatch notification	Refused; return policy applies	Refused; return policy applies

Note: The Apex Pro no-cancellation rule after 7 days applies because a production slot is allocated and cannot be reallocated within the launch window. Dealers should confirm Apex Pro quantities carefully before submission.

7.2 BestRun EV Cancellation Rights

BestRun EV reserves the right to cancel a pre-order and issue a full refund if:

- The dealer's Authorized Dealer Agreement is terminated or suspended.
- The upfront payment invoice is not settled within 5 business days.
- The pre-order contains quantities that exceed the dealer's allocated maximum (as communicated by the account manager).
- BestRun EV discontinues a specific model or variant before launch (full refund issued within 10 business days).

8. Limitation of Liability

BestRun EV's total liability to a dealer in connection with any pre-order is limited to the total value of that pre-order. BestRun EV is not liable for indirect, consequential, or special losses including lost profit, lost sales, or reputational damage arising from delivery delays, allocation shortfalls, or order cancellations.

9. Data & Privacy

Pre-order data (dealer identity, order details, payment information) is processed by BestRun EV for order fulfilment, logistics, and dealer account management. Data is retained for 7 years in accordance with applicable accounting and tax regulations. BestRun EV does not sell dealer data to third parties. Full privacy policy: bestrun-ev.com/privacy.

10. Governing Law & Disputes

These T&C are governed by the laws of Germany. Any dispute arising from a pre-order that cannot be resolved through the dealer portal escalation process will be referred to the courts of Munich, Germany, unless the dealer's Dealer Framework Agreement specifies an alternative jurisdiction.

For pre-order disputes, dealers should first contact their regional account manager. Unresolved disputes may be escalated to dealer-legal@bestrun-ev.com.